DATED 22 JANUARY 2026

Caspian Technologies Limited

(1)

— and —

Harborlight Retail Group plc

(2)

SOFTWARE-AS-A-SERVICE SUBSCRIPTION AND DATA LICENCE AGREEMENT

relating to the Caspian Atlas carbon-analytics platform

Whitfield Carter LLP
22 Bishopsgate, London EC2N 4BQ

Whitfield Carter LLP, 22 Bishopsgate, London EC2N 4BQ. Confidential and may be legally privileged.

THIS AGREEMENT is dated 22 January 2026 and made

BETWEEN:

(1) **Caspian Technologies Limited**, a company incorporated in England and Wales (registered number 10874412) whose registered office is at 8 Finsbury Circus, London EC2M 7EA (the **"Supplier"**); and

(2) **Harborlight Retail Group plc**, a company incorporated in England and Wales (registered number 06632190) whose registered office is at Harborlight House, 140 Cannon Street, London EC4N 6AG (the **"Customer"**).

each a **"Party"** and together the **"Parties"**.

BACKGROUND

(A) The Supplier is the developer and operator of Caspian Atlas, a cloud-hosted carbon-accounting and emissions-analytics platform, and the owner or licensee of an associated database of supply-chain (Scope 3) emissions factors.

(B) The Customer operates a multi-channel retail business and wishes to subscribe to the platform and to license the emissions data in order to measure, report and reduce the greenhouse-gas emissions of its operations and supply chain.

(C) The Supplier has agreed to provide the Subscription Services and to grant the Data Licence to the Customer, and the Customer has agreed to receive and pay for them, on and subject to the terms of this Agreement.

IT IS AGREED as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, the following definitions apply:

"Affiliate" in relation to a party, any entity that directly or indirectly controls, is controlled by, or is under common control with, that party, where "control" means the ownership of more than 50% of the voting share capital.

"Authorised Users" those employees, agents and independent contractors of the Customer and its Affiliates who are authorised by the Customer to use the Services, up to the number of Named Users specified in Schedule 2 (Commercial Terms).

"Caspian Atlas" the Supplier's cloud-hosted carbon-accounting and emissions-analytics software platform, as more particularly described in Schedule 1 (Statement of Work).

"Confidential Information" all information disclosed (whether before or after the date of this Agreement) by one party to the other, which is marked as confidential or which a reasonable person would consider to be confidential, including the terms of this Agreement, the Emissions Data and the Customer Data.

"Customer Data" all data, content and information (other than the Emissions Data) submitted by or on behalf of the Customer or Authorised Users to the Services, including activity, spend and supplier data uploaded for the purpose of calculating the Customer's carbon footprint.

"Data Licence" the licence of the Emissions Data granted under clause 4.

"Data Protection Legislation" the UK GDPR, the Data Protection Act 2018, and any successor or replacement legislation, together with Schedule 4 (Data Processing Agreement).

"Emissions Data" the Supplier's proprietary database of Scope 3 emissions factors and related reference data made available to the Customer through the Services.

"Go-Live Date" the date on which the Supplier confirms in writing that the onboarding described in Schedule 1 is complete and the Services are available for production use.

"Initial Term" the period of 3 years commencing on the Go-Live Date.

"Normal Business Hours" 8:00 a.m. to 6:00 p.m. UK time on a Business Day.

"Services" the Subscription Services and the Support Services, together with the Data Licence.

"SLA" the service level agreement set out in Schedule 3.

"Subscription Fees" the fees payable for the Subscription Services and the Data Licence as set out in Schedule 2.

"Subscription Services" the provision of access to and use of Caspian Atlas as a service via the internet, as described in Schedule 1.

"Support Services" the support services described in Schedule 3 (SLA).

"Virus" any code or thing designed to prevent, impair or otherwise adversely affect the operation of any computer software, hardware or network.

1.2 Clause, schedule and paragraph headings do not affect interpretation. A reference to a clause or schedule is to a clause of, or schedule to, this Agreement.

1.3 A reference to a statute or statutory provision is a reference to it as amended, extended or re-enacted from time to time, and includes all subordinate legislation made under it.

1.4 Any words following the terms "including", "include", "in particular" or "for example" are illustrative and do not limit the words preceding them.

1.5 In the event of any conflict, the clauses of this Agreement prevail over the schedules, save that Schedule 4 (Data Processing Agreement) prevails in respect of the processing of personal data.

2. COMMENCEMENT AND TERM

2.1 This Agreement commences on the date set out above and, unless terminated earlier in accordance with its terms, continues for the Initial Term.

2.2 On expiry of the Initial Term, this Agreement automatically renews for successive periods of 12 months (each a "Renewal Term") unless either party gives not less than ~~90~~~~60~~90 days' written notice of non-renewal before the end of the then-current term.

2.3 The Supplier shall use reasonable endeavours to achieve the Go-Live Date by the target date set out in Schedule 1.

3. SUBSCRIPTION SERVICES AND SUPPORT

3.1 In consideration of the Subscription Fees, the Supplier grants to the Customer a non-exclusive, non-transferable right, without the right to grant sub-licences, to permit the Authorised Users to use the Subscription Services during the Term solely for the Customer's internal business operations.

3.2 The Supplier shall provide the Subscription Services and the Support Services with reasonable skill and care and in accordance with the SLA.

3.3 The Customer shall not access or use the Services in excess of the number of Named Users set out in Schedule 2, except on payment of the additional fees set out in that Schedule.

3.4 The Customer shall not, and shall ensure that the Authorised Users do not, except to the extent expressly permitted: (a) copy, modify or create derivative works of the Services; (b) attempt to reverse-engineer or decompile any part of the platform; or (c) use the Services to build a competing product or service.

3.5 The Supplier shall maintain a back-up of the Customer Data and shall, on the Customer's written request, provide a copy of the Customer Data in a commonly used machine-readable format.

4. DATA LICENCE

4.1 Subject to payment of the data licence element of the Subscription Fees, the Supplier grants the Customer a non-exclusive, non-transferable, revocable licence to access and use the Emissions Data during the Term solely as incorporated into reports and analytics generated through the Services for the Customer's internal carbon-reporting purposes.

4.2 The Customer shall not extract, re-sell, sub-license or otherwise make the Emissions Data available to any third party as a standalone dataset, save that the Customer may include aggregated outputs derived from the Emissions Data in its published sustainability and regulatory reports.

4.3 The Supplier warrants that it is entitled to grant the Data Licence and that the Emissions Data is compiled with reasonable skill and care from recognised sources, but the Supplier does not warrant that the Emissions Data is error-free or fit for any particular regulatory submission.

4.4 On termination of this Agreement, the Data Licence terminates automatically and the Customer shall cease all use of the Emissions Data, save for outputs already embedded in reports published before termination.

5. CUSTOMER OBLIGATIONS AND DATA

5.1 The Customer shall provide the Supplier with all necessary co-operation and access to information as may be required by the Supplier to provide the Services, and is responsible for the accuracy and completeness of the Customer Data.

5.2 The Customer owns all right, title and interest in the Customer Data and grants the Supplier a non-exclusive licence to host, copy and process the Customer Data to the extent necessary to provide the Services.

5.3 The Customer shall ensure that the Authorised Users keep their authentication credentials secure and shall be responsible for any use of the Services through those credentials.

6. CHARGES AND PAYMENT

6.1 The Customer shall pay the Subscription Fees and any other charges set out in Schedule 2.

6.2 The Supplier shall invoice the platform subscription and data licence annually in advance. The Customer shall pay each correctly rendered invoice within ~~30~~45~~30~~ days of the date of the invoice.

6.3 All amounts are exclusive of VAT, which shall be added at the prevailing rate.

6.4 The Subscription Fees for each year of the Initial Term are fixed as set out in Schedule 2. For any Renewal Term the Supplier may increase the Subscription Fees by giving 90 days' notice, by no more than the greater of 4% or the increase in the Consumer Prices Index over the preceding 12 months.

6.5 If the Customer fails to pay any undisputed sum by the due date, the Supplier may charge interest at 3% per annum above the base rate of the Bank of England, and may suspend the Services on 14 days' written notice.

6.6 The Customer shall not be entitled to set off, withhold or deduct any amount except in respect of a sum that is the subject of a bona fide dispute notified in writing before the due date.

7. INTELLECTUAL PROPERTY RIGHTS

7.1 All intellectual property rights in the Services, the Emissions Data and any improvements, modifications or derivative works are and remain the property of the Supplier or its licensors.

7.2 The Supplier grants no rights other than as expressly set out in this Agreement. Nothing in this Agreement transfers any intellectual property rights in the Customer Data, which remain vested in the Customer.

7.3 The Supplier shall indemnify the Customer against any claim that the Customer's use of the Services in accordance with this Agreement infringes a third party's intellectual property rights, subject to the limitations in clause 9.

8. CONFIDENTIALITY AND DATA PROTECTION

8.1 Each party shall keep the other party's Confidential Information confidential and shall not use it except for the purpose of performing its obligations under this Agreement.

8.2 The obligations in clause 8.1 do not apply to information that is or becomes public knowledge other than through breach of this Agreement, or that a party is required to disclose by law or by a regulator.

8.3 Each party shall comply with the Data Protection Legislation. Schedule 4 (Data Processing Agreement) governs any processing of personal data by the Supplier on behalf of the Customer.

9. WARRANTIES AND LIMITATION OF LIABILITY

9.1 The Supplier warrants that the Subscription Services will perform materially in accordance with Schedule 1 and that it will use up-to-date anti-virus measures to keep the Services free from Viruses.

9.2 Except as expressly stated, all warranties, conditions and terms implied by statute or common law are, to the fullest extent permitted by law, excluded.

9.3 Nothing in this Agreement limits or excludes either party's liability for: (a) death or personal injury caused by negligence; (b) fraud or fraudulent misrepresentation; or (c) any liability that cannot lawfully be limited or excluded.

9.4 Subject to clause 9.3, neither party is liable to the other, whether in contract, tort (including negligence) or otherwise, for any loss of profit, loss of revenue, loss of anticipated savings, or any indirect or consequential loss.

9.5 Subject to clauses 9.3 and 9.4, each party's total aggregate liability arising under or in connection with this Agreement in any 12-month period shall not exceed ~~100%~~200%150% of the total Subscription Fees paid or payable by the Customer in the 12 months immediately preceding the event giving rise to the claim~~, save that the limit in this clause 9.5 shall not apply to any liability arising from a breach of clause 8.3 (data protection) or from a personal-data breach~~.

9.6 The Customer's liability for the unpaid Subscription Fees and the Supplier's indemnity at clause 7.3 are not subject to the cap in clause 9.5 to the extent of the fees due and the Supplier's own insurance recoveries respectively.

10. TERMINATION

10.1 Without affecting any other right or remedy, either party may terminate this Agreement on written notice if the other: (a) commits a material breach that is irremediable or, if remediable, is not remedied within 30 days of written notice; or (b) becomes insolvent or unable to pay its debts.

10.2 The Supplier may terminate this Agreement on 14 days' notice if the Customer fails to pay any undisputed amount due and remains in default not less than 14 days after written notice to make payment.

10.3 On termination or expiry: (a) all licences granted under this Agreement terminate immediately; (b) the Customer shall pay all outstanding Subscription Fees; and (c) the Supplier shall, for 30 days, make the Customer Data available for export, after which it may delete it.

10.4 Clauses which by their nature should survive termination (including clauses 7, 8, 9, 11 and 12) survive.

11. GENERAL

11.1 Force majeure. Neither party is liable for any failure or delay in performance to the extent caused by an event beyond its reasonable control, provided it uses reasonable endeavours to mitigate.

11.2 Assignment. Neither party may assign or otherwise transfer any of its rights or obligations without the prior written consent of the other (not to be unreasonably withheld), save that the Supplier may assign to an Affiliate or to a successor in connection with a reorganisation.

11.3 Entire agreement. This Agreement constitutes the entire agreement between the parties and supersedes all prior arrangements. Each party acknowledges that it has not relied on any statement not set out in this Agreement.

11.4 Variation. No variation of this Agreement is effective unless in writing and signed by the parties.

11.5 Notices. Any notice shall be in writing and sent to the relevant party's registered office or such other address as notified, by hand, pre-paid first-class post or email to the contract manager.

11.6 Third party rights. A person who is not a party to this Agreement has no rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any term.

11.7 Counterparts. This Agreement may be executed in counterparts, each of which when executed constitutes a duplicate original.

12. GOVERNING LAW AND JURISDICTION

12.1 This Agreement and any dispute arising out of or in connection with it are governed by and construed in accordance with the law of England and Wales.

12.2 Each party irrevocably submits to the exclusive jurisdiction of the courts of England and Wales.

IN WITNESS WHEREOF the parties have executed this Agreement on the date first set out above.

SIGNED for and on behalf of **Caspian Technologies Limited**

Signature: ……	Name: Henry Larsson
Title: Chief Executive Officer	Date: ……

SIGNED for and on behalf of **Harborlight Retail Group plc**

Signature: ……	Name: Eleanor Vasquez
Title: Chief Financial Officer	Date: ……

Schedules

Schedule 1 — Statement of Work (Implementation and Services)

Schedule 2 — Commercial Terms (Fees and Charges)

Schedule 3 — Service Level Agreement

Schedule 4 — Data Processing Agreement